

		the petition to check the box stating the grounds on which the award became binding—i.e., by subsequent agreement of the parties or because no party requested a trial de novo within 30 days. Moreover, arbitrations under Mandatory Fee Arbitration Act generally are conducted through a local bar association or the State Bar; they are not conducted through private arbitration providers like ADR Services, Inc., which was the arbitration provider in this case. The arbitration award Judge Feffer issued makes clear the arbitration was conducted pursuant to an agreement to arbitrate, not the Mandatory Fee Arbitration Act. At page 2 of the award, the first sentence under the heading “III. Jurisdiction and Relevant Procedural History” reads as follows: “This matter is set forth to binding arbitration pursuant to the parties’ Engagement Agreement and Fee Contract (Exhibit 1, ¶ 8.).” Code of Civil Procedure section 1285.4 sets forth the essential terms of a petition to confirm a contractual arbitration award as follows: “A petition under this chapter shall: [¶] (a) Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement. [¶] (b) Set forth the names of the arbitrators. [¶] (c) Set forth or have attached a copy of the award and the written opinion of the arbitrators, if any.” Although Petitioner’s petition identifies the arbitrator and attaches a copy of her award, it does not set forth the substance or attach a copy of the agreement to arbitrate that Judge Feffer identified as the basis for the arbitration award. Based on the foregoing, the hearing is CONTINUED as set forth above. Petitioner is ordered to forthwith file an amended petition, using Judicial Council Form ADR-106, entitled Petition Confirm Contractual Arbitration Award, and provide all information required to confirm a contractual arbitration award. The amended petition also must be timely served on Respondent. Petitioner is ordered to give notice of this ruling and the continued hearing date.
2.	<i>Xie vs. Chang</i> <i>2025-01481320</i>	Before the court is the continued hearing on the petition of petitioners Shuchun Xie and Zixuan An (collectively, Petitioners) to confirm a contractual arbitration award against respondents Emerald Monkey, LLC, Emerald Dragon, LLC, Alan Tsai, Edward Manolos, and Henry

Chang (collectively, Respondents). The petition is **DENIED WITHOUT PREJUDICE.**

This is the fourth time Petitioners have come before this court on this petition. The hearing has been continued four times over the last thirteen months due to repeated and ongoing service issues. (ROA 14, 38, 49, 56.) The court has specifically pointed out in three of the prior rulings what is necessary to complete service, but Petitioners and their counsel have continuously failed to correct those issues each time. (ROA 14, 38, 56.) Since the last hearing on March 19, 2026, Petitioners have made no filings to update the court or otherwise demonstrate their efforts to properly effectuate service. Petitioners have been afforded many opportunities and many months to address the service issues, but have failed to do so, and have not demonstrated any efforts since the last hearing.

For future reference in connection with any future filing, the court again explains the multiple deficiencies in Petitioners' service. Code of Civil Procedure section 1290.4 governs the services requirements for a petition to confirm an arbitration award and provides as follows:

"(a) A copy of the petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based shall be served in the manner provided in the arbitration agreement for the service of such petition and notice.

"(b) If the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision:

"(1) Service within this State shall be made in the manner provided by law for the service of summons in an action.

"(2) Service outside this State shall be made by mailing the copy of the petition and notice and other papers by registered or certified mail. Personal service is the equivalent of such service by mail. Proof of service by mail shall be made by affidavit showing such mailing together with the return receipt of the United States Post Office bearing the signature of the person on whom service was made. Notwithstanding any other provision

	of this title, if service is made in the manner provided in this paragraph, the petition may not be heard until at least 30 days after the date of such service.” The arbitration agreement among the parties does not appear to provide a means of service and none of Respondents have previously appeared in this case. Accordingly, the petition to confirm the arbitration award must be served in the same manner as a summons. As the court noted in its August 7, 2025, ruling, Petitioners filed proofs of service showing the petition and related documents were served on respondents Emerald Monkey, LLC and Emerald Dragon, LLC, which appear proper. (ROA 10, 12, 14.) After the initial hearing on August 7, 2025, Petitioners filed a proof of service stating they served Messrs. Tsai and Manolos by electronic mail to their alleged attorney. (ROA 18.) Again, however, there remained no showing counsel was authorized to accept service of process on behalf of Messrs. Tsai and Manolos or that electronic mail service is sufficient. The court repeated this concern at the continued hearing on the petition on November 6, 2025, and again on March 19, 2026. (ROA 38, 56.) Petitioners still have failed to provide the court with evidence service in this manner was proper as to Messrs. Tsai and Manolos. As for respondent Henry Chang (Chang), after the court denied two prior applications by Petitioners for service by publication due to insufficient efforts of other means of service on Chang and incomplete declarations on the part of counsel (ROA 28, 38), the court granted the most recent application on December 31, 2025. (ROA 49, 50.) In the order granting that application, the court continued the hearing on the petition to March 19, 2026. Despite notice of the ruling being served on counsel for Petitioners regarding the hearing date of March 19, 2026, the proof of service by publication indicated the prior and incorrect hearing date of February 5, 2026, was published. (ROA 54.) The incorrect date in the published proof of service did not provide Chang with the proper hearing date or ability to oppose the Petition should he so choose. When the court continued the March 19, 2026, hearing, it permitted Petitioners to serve Chang notice of the present hearing date by publication. Instead, Petitioner emailed Chang, which is improper.
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		Based on the multiple prior continuances and ongoing service issues, the court denies the petition without prejudice. Petitioners to give notice.
3.	<i>Omega Accounting Solutions, Inc. vs. Bonanno Investment Enterprises, Inc.</i> 2026-01542344	Before the court is the petition to confirm arbitration award filed by petitioner Omega Accounting Solutions, Inc. (Petitioner). As more fully set forth below, the petition is DENIED WITHOUT PREJUDICE. The petition previously came on for hearing on April 30, 2026. Prior to that hearing, the court posted a tentative ruling to continue the petition to today's date but on various deficiencies, including the failure to properly serve respondent Bonanno Investment Enterprises, Inc. (Respondent). At the hearing, the court adopted the following as its final ruling" "Before the court is a petition to confirm arbitration award filed by petitioner Omega Accounting Solutions, Inc. (Petitioner). For the reasons set forth below, the petition is CONTINUED TO JUNE 18, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for proper service and proof thereof. "The arbitration agreement is silent as to the manner of service of the petition and notice of hearing. Respondent Bonanno Investment Enterprises, Inc. (Respondent) has not previously appeared in the proceeding. The petition and notice of hearing must, therefore, be served on Respondent in the same manner as service of a summons. (See Code Civ. Proc., § 1290.4.) Although the notice of hearing on the petition was properly served by personal service on Respondent's registered agent (see ROA 13), there is no proof of service showing proper service of the petition on Respondent. The proof of service for the petition shows the petition was served on Respondent by mail on January 22, 2026, which is not an appropriate method of service. (See ROA 2; Code Civ. Proc., § 1290.4.) "In addition, the petition does not set forth the date when the arbitration award was served upon Petitioner. Although the petition shows compliance with Code of Civil Procedure section 1288, it is unclear whether the petition complies with the requirements of Code of Civil Procedure section 1288.4, which states no petition may be served and filed 'until at least 10 days after service of the signed copy